

2021 Y L R 1731

[Lahore]

Before Masud Abid Naqvi, J

SADAF YOUNAS---Petitioner

Versus

MUHAMMAD USMAN FAROOQ---Respondent

Civil Revision No. 78215 of 2019, decided on 9th March, 2021.

Civil Procedure Code (V of 1908)---

----O. IX, R. 13---Ex-parte judgment---Knowledge---Proof---Respondent-plaintiff filed suit for recovery of gold ornaments which was decreed in his favour ex parte--
- Petitioner-defendant sought setting aside of ex-parte judgment and decree passed against her---Validity---Petitioner-defendant was well aware of institution as well as decree passed in suit but she did not intentionally appear in Court---Petitioner-defendant failed to substantiate allegation of fraud---Mere allegation not supported by any material would not invariably warrant inquiry or investigation---All such facts negated the claim/ground as written in application for setting aside ex parte orders---Plea raised by petitioner-defendant before High Court had no force---Petitioner-defendant did not point out any plausible ground due to which he was seeking setting aside of orders in question---Judgment and decree was passed after proper evaluating facts of case and keeping in view the settled law---High Court declined to set aside ex-parte judgment and decree passed against petitioner-defendant as there was no infirmity, legal or factual---Revision was dismissed in circumstances.

Dr. Muhammad Javaid Shafi v. Syed Rashid Arshad and others PLD 2015 SC 212 rel.

Malik Shahbaz Ahmad for Petitioner/Defendant.

Rana Rashid Ikram for Respondent/Plaintiff.

ORDER

MASUD ABID NAQVI, J.---Brief facts necessary for the adjudication of this lis are that the petitioner/defendant filed an application under Order IX, Rule 13, C.P.C. for setting aside ex-parte judgment and decree dated 28.09.2015 on the ground that suit for recovery of gold ornaments filed by the respondent/ plaintiff titled "Muhammad Usman Farooq v. Sadaf Younas" was ex-parte decreed against the petitioner without her knowledge of filing/pendency of suit as she neither received any notice through process server or registered postal envelope or other mode nor received the proclamation in newspaper and only became aware of decree on 02.06.2016, during proceeding of execution petition, which was dismissed by the learned trial court vide order 22.06.2019 and the order was maintained/upheld by the learned appellate court through judgment dated 08.11.2019. Aggrieved by

the order and judgment of learned courts below, the petitioner has filed instant petition and challenged both order/judgment.

2. I have heard the learned counsel for the parties who reiterated their arguments and perused the available record as well as have minutely gone through both the impugned order/ judgment.

3. Perusal of record reveals that respondent/plaintiff filed a suit for recovery of gold ornaments and cash at Sialkot on 12.11.2014 and learned trial court adopted all modes of service including publication of proclamation and in petitioner's application, the petitioner never alleged that she is not residing on the address, mentioned in the suit while during the argument, when confronted with the documents that notices were received by the petitioner's aunty residing with her, the learned counsel pleaded that no notices were served to petitioner's aunty and even service of notices to petitioner's aunty cannot be considered as valid because notice should be served on the male member of the family. To rebut the report of service, the petitioner never produced her aunty as witness and only herself appeared as witness/AW-1, without producing any other witness. In cross-examination, she not only acknowledged the correctness of her address in plaint but also the presence of her aunt in her house.

The ex-parte proceedings were initiated by the learned trial court against the petitioner/defendant on 21.02.2015 and before the initiation of ex parte proceedings, the respondent filed written statement in petitioner's suit for maintenance etc before the learned Judge Family Court at Rawalpindi on 23.01.2015 and in para 04 thereof, the respondent duly mentioned/ pleaded the filing/pendency of his abovementioned suit at Sialkot. The respondent also filed an affidavit/Ex.D-1 by mentioning the institution of his suit and decree and also submitted photo copy of his suit along with decree which was duly marked in petitioner's suit and thereafter, precept of decree of respondent was transferred to Rawalpindi.

While appearing as PW-1 in her suit on 09.04.2016, the petitioner conceded about the knowledge of the pendency of petitioner's suit for conjugal rights at Sialkot, her appearance in the suit, filing of written statement, opted not to appear thereafter, ex-parte decree in the suit, claim of respondent about gold ornament and cash.

In her application, the petitioner pleaded that on 02.06.2016, she further became aware of ex parte decree but without giving any source of knowledge while she was herself present in court on 28.05.2016 when learned District Judge, Rawalpindi proceeded on the respondent's application for the consolidation of different matters, pending before different courts. Hence, she had the knowledge about the ex parte decree and execution petition on 28.05.2016.

4. Despite knowledge of proceedings in respondent's suit, the petitioner failed to file application within 30 days from her knowledge which is 23.01.2015 while she mentioned wrong date 02.06.2016 about gaining of knowledge of decree. She even did not file the application under section 5 of Limitation Act 1908 for condonation of delay, so application for setting aside ex parte decree is also time barred.

5. While discussing the nature, object, scope and applicability of the law of limitation, the Hon'ble Supreme Court in a case reported as Dr. Muhammad Javaid Shafi v. Syed Rashid Arshad and others (PLD 2015 SC 212) has held as under:

"Such law of limitation is founded upon public policy and State interest. This law is vital for an orderly and organized society and the people at large, who believe in being governed by systemized law. The obvious object of the law of limitation is that if no time constraints and limits are prescribed for pursuing a cause of action and for seeking reliefs/remedies relating to such cause of action, and a person is allowed to sue for the redressal of his grievance within an infinite and unlimited time period, it shall adversely affect the disciplined and structured judicial process and mechanism of the State, which is sine qua non for any State to perform its functions within the parameters of the Constitution and the rule of law

The object of the law of limitation and the law itself, prescribing time constraints for each cause or case or for seeking any relief or remedy has been examined by the courts in many a cases, and it has been held to be a valid piece of legislation, and law of the land. It is "THE LAW" which should be strictly construed and applied in its letter and spirit; and by no stretch of legal interpretation it can be held that such law (i.e limitation law) is merely a technicality and that too of procedural in nature. Rather from the mandate of Section 3 of the Limitation Act, it is obligatory upon the court to dismiss a cause/lis which is barred by time even though limitation has not been set out as a defence. And this shows the imperative adherence to and the mandatory application of such law by the courts. The said law is considered prescriptive and preventive in nature and is held to mean and serve as a major deterrent against the factors and the elements which would affect peace, tranquility and due order of the State and society. The law of limitation requires that a person must approach the court and take recourse to legal remedies with due diligence, without dilatoriness and negligence and within the time provided by the law; as against choosing his own time for the purpose of bringing forth a legal action at his own whim and desire. Because if that is so permitted to happen, it shall not only result in the misuse of the judicial process of the State, but shall also cause exploitation of the legal system and the society as a whole. This is not permissible in a State which is governed by law and Constitution. And it may be relevant to mention here that the law providing for limitation for various causes/reliefs is not a matter of mere technicality but foundationally of "LAW" itself In the above context, a judgment of this Court reported as Atta Muhammad v. Maula Bakhsh and others (2007 SCMR 1446) has thrown considerable light on the subject and has provided guidance, in the following words:--

"We may add that public interest require that there should be an end to litigation. The law of limitation provides an element of certainty in the conduct of human affair. Statutes of limitation and prescription are, thus, statues of peace and repose. In order to avoid the difficulty and errors that necessarily result from lapse of time, the presumption of coincidence of fact and right is rightly accepted as final after a certain number of years. Whoever wishes to

dispute this presumption must do so, within that period; otherwise his rights if any, will be forfeited as a penalty for his neglect. In other words the law of limitation is a law which is designed to impose quietus on legal dissensions and conflicts. It requires that persons must come to Court and take recourse to legal remedies with due diligence."

6. All above oral and documentary evidence clearly shows that petitioner was well-aware of institution as well as decree of suit but she did not intentionally appear in the court. The petitioner failed to substantiate the allegation of fraud. Mere allegation not supported by any material would not invariably warrant inquiry of investigation. All these abovementioned facts negate the claim/ground as written in application for setting aside the impugned orders. Therefore, plea being raised by the petitioner at this stage has no force. Learned counsel for petitioner has not been able to point out any plausible ground due to which he is seeking setting aside of the impugned orders, hence, he is not entitled to any relief.

7. In view of the foregoing discussion, this Court is of the considered view that the impugned order/judgment have been passed after properly evaluating the facts of the case and keeping in view the settled law. No infirmity, legal or factual, has been pointed out in the impugned order/ judgment, requiring interference, therefore, this civil revision is dismissed.

MH/S-20/L Revision dismissed.